

1970 No. 2

A MEASURE passed by The National Assembly of the Church of England to extend the Pastoral Measure 1968 for the purpose of authorising sharing agreements in respect of consecrated churches and parsonage houses, and to provide for other matters arising out of the sharing of church buildings by the Church of England.
[24th March 1970]

1.—(1) For the purpose of authorising by pastoral scheme the making of sharing agreements on behalf of the Church of England in respect of consecrated churches and parsonage houses which under the agreement will be in the joint ownership of that Church and any other Church, the Pastoral Measure 1968 shall be extended as follows:—

Authorisation by pastoral scheme of sharing of consecrated churches and parsonage houses.

- (a) the duties of a Pastoral Committee under section 2(1) of the said Measure to review arrangements for pastoral supervision shall include a duty to consider any proposals for such sharing agreements as aforesaid, and in cases where they consider it desirable, to make recommendations to the bishop for authorising the making of such agreements on behalf of the Church of England; 1968 No. 1.
- (b) the powers exercisable under Part II of the said Measure by pastoral scheme shall be deemed to include power to provide for such authorisation;
- (c) the provisions of the said Measure shall apply accordingly to such recommendations and the proceedings to be taken thereon and to pastoral schemes providing for such authorisation, as they apply to recommendations, proceedings and schemes relating to other matters contained in the said Part II.

(2) A pastoral scheme authorising the making of any such agreement shall specify the church or parsonage house to which it relates, and may specify terms and conditions subject to which the authorisation is given.

Application
to shared
church
buildings
of powers
of Church
Commissioners
and others
under certain
Measures.
1954 No. 1.

2.—(1) The powers of the Church Commissioners under the New Housing Areas (Church Buildings) Measure 1954 to make grants or loans in respect of church buildings used or to be used wholly or mainly for purposes connected with the Church of England shall be exercisable in respect of any church buildings shared or to be shared by the Church of England under a sharing agreement, being buildings which under the agreement are or will be owned by the Church of England only or jointly owned by that Church and any other Church.

1943 No. 1.

(2) The powers of the Church Commissioners under section 13 of the New Parishes Measure 1943 (which provides for the acquisition by them of certain church buildings or sites therefor or other land) and the powers of certain corporations and persons under sections 14 and 15 of the said Measure to grant buildings or land to the said Commissioners for the purposes mentioned in the said section 13, shall apply to church buildings which under a sharing agreement are to be owned or continue to be owned by the Church of England only, and to land required as sites for such buildings or for purposes connected therewith, and sections 16 to 19 of the said Measure shall apply accordingly to such buildings and land.

(3) The powers under section 14(1) and (2) and section 15 of the said Measure shall also apply to church buildings which under a sharing agreement are to be jointly owned by the Church of England and any other Church, and to land required as sites for or otherwise in connection with such church buildings, with the modification that for the references to the said Commissioners there shall be substituted references to the trustees or custodian trustee in whom the building or land is to be vested, and section 18 of the said Measure shall apply to instruments made by virtue of this subsection.

Interpretation. 3. In this Measure, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“consecrated” means consecrated for the purpose of public worship according to the rites and ceremonies of the Church of England;

1968 No. 1

“parsonage house” and “pastoral scheme” have the same meanings as in the Pastoral Measure 1968;

1969 c. 38.

“sharing agreement” and “church building” have the same meanings as in the Sharing of Church Buildings Act 1969, and references to the ownership of church buildings shall be construed in the same manner as in that Act.